

26LBCV00116 26LBCV00116

County: los-angeles

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Case Number: 26LBCV00116 Hearing Date: July 9, 2026 Dept: S27

Background Facts

Plaintiff, J&J Solution

Enterprises, LLC filed this action against Defendants, Jamon Jay Ferreira and Eucalyptus LLC for declaratory relief, breach of fiduciary duty, breach of operating agreement, accounting, conversion, and injunctive relief. The crux of the complaint is that Plaintiff contributed capital in exchange for membership and contractual control rights over the LLC defendant, and the individual defendant, who was designated as the LLC defendant's primary manager, mis-managed assets and committed other fraudulent conduct that compromised Plaintiff's investment.

Motion to Expunge

Lis Pendens

a.

Governing Law

In a motion to expunge a notice of lis pendens, the claimant who filed the lis pendens has the burden of proof. CCP §405.30. Thus, that claimant, in opposing the motion to expunge the lis pendens, must demonstrate the following: (1) the action affects title to or right of possession of the real property described in the notice; (2) in so far as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim by a preponderance of the evidence. *Hunting World, Inc. v.*

Superior Court (1994) 22 Cal.App.4th 67, 70; see also CCP §405.30, et seq. The court must order the notice expunged if it finds the pleading on which the notice is based does not contain a real

property claim (CCP §405.31) or the claimant has not established by a preponderance of the evidence the probable validity of the real property claim (CCP §405.32). A claim has "probable validity" where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. CCP §481.190.

b. Procedural

History

The Court was originally scheduled to hear this motion on 6/16/26.

Plaintiff, in opposition to the motion, asked the Court to continue the hearing to 7/09/26, to be heard concurrently with his pending motion for leave to file an amended complaint; the crux of his opposition was his concession that the original complaint did not include a real property claim, but the proposed amended complaint did, and the claims in the amended complaint had merit, such that the motion should be denied.

For reasons that are not clear from the record, the Court, on 6/16/26, took the motion for leave to file an amended complaint off calendar. The FAC was, however, deemed "filed" on 5/22/26, which leads to the conclusion that the Court, during the 6/16/26 hearing, must have indicated that the FAC should be deemed filed instead of merely lodged with the moving papers.

c. Request

for Judicial Notice

Defendant seeks judicial notice of the two recorded lis pendens that form the basis of this motion. The RJN is unopposed and granted.

d. Analysis

Plaintiff recorded a lis pendens on two of the individual defendant's properties.

The individual defendant moves to expunge the lis pendens, contending that this action does not concern title to or right to possession of the property in the notice, and therefore a lis pendens is improper. He also contends the lis pendens must be expunged on procedural grounds.

Plaintiff, in opposition to the motion, concedes the original complaint did not state a real property claim that would permit it to record a lis pendens. It contends, however, that it has a pending motion for leave to file an amended complaint, and the amended complaint states valid real property claims that support the recording of the subject lis pendens. As noted above, the amended complaint has been deemed filed, and it does, indeed, state a real property claim; specifically, the FAC includes causes of action for constructive trust and equitable lien on Defendant's 30th St. property and Defendant's Landis Ave property. Plaintiff provides evidence that Defendant refinanced the Eucalyptus property (which is owned by the Eucalyptus LLC, in which Plaintiff and Defendant are both members) and used the funds to benefit Defendant's individually owned 30th St and Landis Ave properties.

Regardless of whether Plaintiff's lis pendens are based on a well-pled real property claim, Plaintiff concedes, in opposition to the motion, that there are procedural defects in his recorded lis pendens. Specifically, Plaintiff concedes he did not comply with CCP §§405.22 and 405.23, which require service of a copy of the lis pendens by registered or certified mail, return receipt requested, prior to recordation, and require filing the notice of lis pendens in the pending court action.

Plaintiff posits various reasons for his failure to properly serve the lis pendens, but does not provide any explanation at all for his failure to file the lis pendens in this action. Plaintiff briefly suggests the hearing on the motion should be continued if the Court finds there is a defect in the recordation and/or filing of the lis pendens, but does not provide any authority establishing this is a curable defect; indeed, it seems the proper remedy would be to file and record a new lis pendens and follow all proper procedures when doing so.

Importantly, CCP §405.22 is mandatory, using the word "shall," and §405.23 makes clear that any lis pendens recorded in violation of §205.22 is "void and invalid." Plaintiff cites nothing establishing the Court has discretion to ignore the requirements of the Code, and Plaintiff has the burden of proof on a motion to expunge lis pendens.

In light of the conceded procedural

defects, the motion to expunge is granted.

The remaining issue is whether attorneys' fees should be awarded. CCP

§405.38 provides for an award of attorneys' fees in favor of the party who prevails on a motion to expunge lis pendens, unless the Court finds the party who lost the motion acted with substantial justification or other circumstances render imposition of fees and costs unjust.

Plaintiff argues he acted with substantial justification because he has a valid real property claim, and he was trying to serve Defendant with the lis pendens, but was unable to locate him to do so.

As Defendant correctly notes in reply, this contention is suspect, as Plaintiff was able to serve the summons and complaint. Additionally, Plaintiff's argument does not meaningfully address the failure to file the lis pendens in this action. Finally, as Defendant correctly notes in reply, the pleading upon which the lis pendens was based, even though superseded prior to the hearing on the motion, did not state a real property claim.

The Court finds Plaintiff failed to meet its burden to show good cause or substantial justification, and therefore an award of attorneys' fees is appropriate.

Defendant seeks to recover fees in the amount of \$5620, which amount Plaintiff contends is excessive. Defense Counsel

bills at the rate of \$850/hour. His associate bills at the rate of \$660/hour.

The associate billed seven hours to review the two recorded lis pendens, evaluate the presence of any real property claim, and draft the motion, supporting declarations, and request for judicial notice. The partner billed .4 hours to assist with preparation of the moving papers. The

associate is billing one additional hour to prepare the reply and appear at the hearing. The Court finds these are reasonable fees in light of the complexity of the issues presented, the thorough briefing in the motion and reply, and Counsel's education, experience, and background. The request is therefore granted in its entirety.

e. Final
Issue

The case has a CMC and OSC on calendar on 7/22/26 and a motion to be relieved as counsel on 7/23/26. The Court continues the 7/22/26 CMC and OSC

to be heard concurrently with the 7/23/26 motion.

Moving Party is ordered to give notice.